

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Hart	Team: Team # 4	CCRB Case #: 201303024	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 04/04/2013 7:20 PM	Location of Incident: Union Square Subway Station	Precinct: 09	18 Mo. SOL 10/4/2014	EO SOL 10/4/2014	
Date/Time CV Reported Fri, 04/05/2013 2:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/16/2013 4:56 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Garry Lamour	30321	950716	TB
2. POM Anthony Gambino	04072	950460	TB
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Johnny Liu	29496	950759	TB
2. POM Ryan Logan	15993	942070	001 PCT
3. POM Peter Wong	18848	942722	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Garry Lamour	Force: PO Garry Lamour used physical force against § 87(2)(b)	
B.POM Anthony Gambino	Abuse: PO Anthony Gambino did not obtain medical treatment for § 87(2)(b)	
C. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	

Case Summary

On April 5, 2013, § 87(2)(b) filed this complaint with IAB. It was received by the CCRB on April 16, 2013. At approximately 7:20PM on April 4, 2013, § 87(2)(b) had an interaction with officers inside the Union Square subway station and inside Manhattan Central Booking. The following allegations resulted:

- **Allegation A) Force: PO Garry Lamour used physical force against** § 87(2)(b)
- **Allegation B) Abuse of Authority: PO Anthony Gambino did not obtain medical treatment for** § 87(2)(b)
- **Allegation C) Abuse of Authority: An officer spoke discourteously to** § 87(2)(b)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) white male who is 6'1 tall and weighs 200 pounds. § 87(2)(b) has brown hair and brown eyes. § 87(2)(b)

Statements to Medical Personal

- § 87(2)(b)'s EMS Event Summary indicates that § 87(2)(b) called 911 on § 87(2)(b) requesting that an ambulance respond to Manhattan Central Booking. He reported his symptoms as dizziness, nausea, and stomach pain. § 87(2)(b) was removed from Manhattan Central Booking at § 87(2)(b) and transported to § 87(2)(b) at § 87(2)(b). (See Privileged Medical Records)
- § 87(2)(b)'s Prehospital Care Report states that on § 87(2)(b) EMT unit § 87(2)(b) responded to Manhattan Central Booking. The narrative history states that § 87(2)(b) was observed "being verbally abusive and threatening as well as shouting racial epithets towards EMS and NYC Corrections. § 87(2)(b) stated that he had been unable to take his prescription medication for three days and complained of abdominal discomfort. § 87(2)(b) also stated that he had been assaulted by police officers. His chief complaint was, "I don't feel good and I was beat up." (See Privileged Medical Records)
- § 87(2)(b)'s Medical Treatment of Prisoner Report notes that § 87(2)(b) refused medical aid in the field and at the command. It notes that he did not refuse medical aid within the court section. Under remarks it states, "Prisoner claims he was assaulted by police. States he has stomach cramps, and is off of his psych medication. (See Privileged Medical Records)

CCRB Statement

On May 14, 2013, § 87(2)(b) was interviewed at the CCRB (enc. B5-7). § 87(2)(b)

§ 87(2)(b) On April 4, 2013, sometime between 6:00PM and 8:00PM, § 87(2)(b) was arrested inside the Union Square subway station. § 87(2)(b) had taken the train into the city from JFK airport and was wearing a large backpack which had clothes and a phone charger in it. § 87(2)(b) attempted to exit the station through the emergency exit door. While he was in the doorway, he realized that he was at the wrong station and turned to go back to the platform. § 87(2)(b) was still in the doorway of the emergency gate when he was grabbed from behind.

§ 87(2)(b) heard people yelling at him but did not know what was being said or who was yelling at him. § 87(2)(b) felt someone place their arms around his torso and pin his arms to his side, he did not know who was touching him or why. He stood completely still and did not say anything when he was first grabbed. While he was still being held, PO Johnny Liu came from behind and positioned himself to the side of § 87(2)(b). PO Liu was a uniformed Asian male, about 5'6" and 150-160 pounds. When § 87(2)(b) saw that PO Liu was a uniformed officer, he realized that he was being arrested. PO Liu moved to one side of § 87(2)(b) while the officer who initially grabbed § 87(2)(b) from behind, PO Gary Lamour, moved to the other side. PO Lamour was a uniformed black male officer with a bald head who appeared to be in his twenties, about 6'2" with a muscular build. Both officers attempted to grab § 87(2)(b)'s hands and place them behind his back. § 87(2)(b) got the names of PO Lamour and PO Liu from their nameplates.

Though § 87(2)(b) did nothing to physically resist the officers, PO Liu and PO Lamour were forced to "fight each other" in an attempt to handcuff § 87(2)(b). As they tried to grab his hands, § 87(2)(b) asked both officers why he was being handcuffed and if he was under arrest but they would not respond. § 87(2)(b) did not attempt to flail his arms or flee, but was unable to explain why the officers struggled to handcuff him. As the officers attempted to handcuff him, § 87(2)(b) fell to the ground and on to his chest. § 87(2)(b) is not sure how he ended up on the ground but recalls that both officers were yelling at him to, "Stop resisting." When § 87(2)(b) fell, both PO Liu and PO Lamour were standing on either side of him. PO Lamour kicked § 87(2)(b) in the chest and once in the face from a standing position. PO Lamour then knelt on the ground beside § 87(2)(b) and knelt him in the face two times while holding onto his head and shoulders and shouting at § 87(2)(b) to, "Stop resisting." § 87(2)(b) could not recall the sequence of events clearly, but thinks he was handcuffed after falling to the ground but before he was knelt in the face. While he was on the ground, § 87(2)(b) started yelling for help from the crowd that gathered to watch his arrest. § 87(2)(b) estimated that about 100 people were watching his arrest, but he did not know any of them or get any of their contact information. He did not know who handcuffed him.

While PO Lamour was kneeling § 87(2)(b) in the face, PO Liu searched § 87(2)(b)'s backpack. PO Liu and PO Lamour placed § 87(2)(b) in a cell within the Union Square subway station. When he was in the holding cell, § 87(2)(b) noticed that he was bleeding from the mouth and had bruises on his torso. § 87(2)(b) was handcuffed to a bar within the holding cell and PO Lamour said, "Take his cuffs off I want him to fight me." There were officers present when PO Lamour made this comment but § 87(2)(b) could only describe PO Gambino, whose name § 87(2)(b) obtained from his nameplate. PO Gambino was a uniformed white male, with stubble on his face and short hair. PO Gambino gave § 87(2)(b) jelly beans while § 87(2)(b) sat in the holding cell. At some point while

he was in the holding cell in Union Station, PO Gambino fingerprinted and photographed § 87(2)(b). § 87(2)(b) told PO Gambino that he needed to see a doctor and PO Gambino replied, “You don’t want to see a doctor.” § 87(2)(b) replied that he needed to see a doctor but did not ask PO Gambino for medical attention again. From the cell, § 87(2)(b) shouted his request for medical attention to “a couple officers who were passing through,” and was ignored. § 87(2)(b) could not describe any officers besides PO Gambino who he interacted with while in the Union Station holding cell. While § 87(2)(b) was in the holding cell, he heard a conversation that occurred in a different room in which an officer accused § 87(2)(b) of biting an officer when they tried to arrest him.

§ 87(2)(b) believes he was removed from the cell in Union Station at around 1:00AM and taken to Central Booking. He was transported by three or four officers in a marked RMP. § 87(2)(b) could not describe any of the officers in the car with him but thinks they were all male officers. While in Central Booking, § 87(2)(b) requested medical attention from an officer but he could not describe this officer. While he was inside a cell at Central Booking, between 2:00AM and 3:00AM, § 87(2)(b) called 911 for an ambulance. When the ambulance arrived, § 87(2)(b) was placed in handcuffs and leg shackles by officers whom he could not describe. § 87(2)(b) complained that the leg shackles were too tight and an officer who he could not describe laughed at § 87(2)(b) and said, “Don’t be a bitch.” An EMT was present when this remark was made. The EMT told § 87(2)(b) that he should become an EMT and join, “the second biggest gang in New York.” The EMT was a white male in his late thirties, about 6’3” with longish brown hair with some green in it.

§ 87(2)(b) was transported to § 87(2)(b) where he was treated for cuts in his mouth and on his hands. § 87(2)(b) believed he received the cuts on his hands from being handcuffed and the cut in his mouth from PO Lamour kicking or punching him in the face. While at § 87(2)(b) it was discovered that § 87(2)(b) had previously been diagnosed with bipolar disorder. He was held in § 87(2)(b) for several weeks both before and after his court date. § 87(2)(b) was charged with § 87(2)(b).

NYPD Statements:

Subject Officer: PO GARY LAMOUR

- PO Gary Lamour is a § 87(2)(b)-old black male who is 5’9” tall and weighs 180 pounds. PO Lamour has black hair and brown eyes.
- On April 4, 2013, PO Lamour worked from 9:30PM to 6: 50AM. PO Lamour was in uniform and worked with PO Charles Pasquarello and PO Tchekie Jeune. PO Lamour was assigned to Transit Patrol.

Memo Book

At 7:20PM, observed one white male theft of services by walking thought the turnstile without authority or permission to do so. Upon stop defendant stated, “I don’t have to talk to you, I don’t have to give you ID. I’m from Canada. Upon further, defendant resisted saying I can’t get arrested I’m Canadian he started flailing his arms, kicking his legs. At 8PM, PO Liu holding one for further investigation. A bag of weed was recovered by PO Liu inside left jacket pocket (enc. C1-6).

CCRB Statement

On July 18, 2013, PO Gary Lamour was interviewed at the CCRB (enc. C7-8). At approximately 7:20PM, on April 4, 2013, PO Gary Lamour was in the Union Square Subway station in Manhattan. PO Lamour and his partner, PO Jonny Liu, were inside a room within the

subway station when they first observed § 87(2)(b) PO Lamour and PO Liu were standing in this room with the door partially opened, enough to have a clear view of the turnstile but hidden from potential fare evaders. PO Lamour observed a white male, known to the investigation as § 87(2)(b) enter the subway system through an emergency exit gate without paying the fare. The gate was open because people were exiting the subway station through the emergency gate.

PO Lamour and PO Liu approached § 87(2)(b) while he was still in the doorway of the gate. PO Lamour said to § 87(2)(b) “Sir, May we talk to you? Are you aware you did not pay your fare?” § 87(2)(b) responded, “I don’t talk to police, I don’t have to talk to you. I’m from Canada.” PO Lamour said, “You understand that you didn’t pay your fare, that’s the reason we approached you. We need ID from you so we can document that we made contact with you.” § 87(2)(b) replied, “I don’t have to talk to you, I’m Canadian.” § 87(2)(b) began to flail his arms and raise his voice. PO Lamour instructed him to turn around and put his hands behind his back and stated, “You are now under arrest for further investigation purposes.” § 87(2)(b) entered into a fighting stance with his fists raised in front of him. PO Lamour and PO Liu were arranged on either side of § 87(2)(b) and they both grabbed hold of his arms in an attempt to handcuff § 87(2)(b). After a struggling with § 87(2)(b) for one to two minutes, PO Lamour grabbed one of § 87(2)(b)’s legs and brought § 87(2)(b) to the ground. § 87(2)(b) continued to resist on the ground by holding his arms underneath him. § 87(2)(b) was screaming loudly on the ground, twisting his body to get out of the officers’ grasp, and kicking his legs. PO Lamour ordered § 87(2)(b) to stop resisting and place his hands behind his back several times. PO Lamour stated that it took between two and four minutes to finally overcome § 87(2)(b)’s resistance and place him in handcuffs. PO Lamour did not recall kicking or kneeing § 87(2)(b) as they struggled on the ground. PO Lamour did not strike or kick § 87(2)(b) once he was handcuffed. PO Lamour helped § 87(2)(b) get into a sitting position. § 87(2)(b) continued to scream after being handcuffed and continued to move away from the officers’ grasp. PO Lamour and PO Liu helped § 87(2)(b) to his feet and walked § 87(2)(b) to the Fourth Transit Bureau in the Union Square Subway station.

Once in the command, PO Liu searched § 87(2)(b) and found a quantity of marijuana. The discovery of the marijuana upset § 87(2)(b) and he accused the officers of planting the drugs on his person. There was a desk sergeant present when the marijuana was discovered. PO Lamour did not know this sergeant’s name but described him as white male assigned to Transit District 4. PO Liu began processing the paperwork for the arrest and PO Lamour resumed patrol. At 1:35AM, PO Lamour returned to the Transit District 4 and assisted PO Liu in transporting § 87(2)(b) to Manhattan Central Booking.

Witness Officer: PO JOHNNY LIU

- PO Johnny Liu is a § 87(2)(b)-old Asian male who is 5’7” tall and weighs 140 pounds. PO Liu has black hair and brown eyes.
- On April 4, 2013, PO Liu worked from 5:30PM to 6:05AM on April 5, 2013. PO Liu worked with PO Gary Lamour and was in uniform. He was assigned to patrol the “6” train line from 14th Street to 42nd Street.

Memo Book

At 7:20PM, observed white male walk through gate; when asked to turn around defendant became uncooperative holding his fist and started screaming, “I’m from Canada I don’t have to talk to you; I can’t get arrested I’m from Canada I can’t be arrested.” Defendant continued to flail his arms and legs. At 8PM, holding suspect for § 87(2)(b)

§ 87(2)(b)

Upon further investigation, found bag of marijuana in left inside jacket pocket. Arrived at Transit District 4. At 9:12PM, processing arrest § 87(2)(b), complaint #§ 87(2)(b). At 11:20PM, Invoice #§ 87(2)(b) and § 87(2)(b) Upon finger prints of prisoner found different name; prisoner gave § 87(2)(b) prints came back § 87(2)(b) NYSID #§ 87(2)(b) At 1:35AM, transport to Manhattan Central Booking. At 1:40AM, arrived at Manhattan Central Booking. At 1:56AM, lodged prisoner (enc. C9-13).

Arrest Report

§ 87(2)(b)'s arrest report is sealed. § 87(2)(b) was charged with § 87(2)(b) and his arresting officer was PO Liu. § 87(2)(b)'s NYSID is § 87(2)(b) and the arrest number related to this incident is § 87(2)(b)

CCRB Statement

On June 21, 2013, PO Jonny Liu was interviewed at the CCRB (enc. C14-15). At approximately 7:00PM, on April 4, 2013, PO Jonny Liu was in the Union Square Subway station in Manhattan. PO Liu and his partner, PO Lamour, were in the mezzanine area in the vicinity of the turnstiles near the "L" train entrance. PO Lamour was writing a summons for an unrelated incident when PO Liu observed a white male, known to the investigation as § 87(2)(b) enter the subway system through an open emergency gate. PO Liu was about four feet away from the emergency gate in question and had an unobstructed view of § 87(2)(b) evading the fare. As PO Liu approached § 87(2)(b) he said, "Sir, what are you doing? Please stand against the wall." § 87(2)(b) was still in the doorway of the emergency gate when this order was given and he complied and stood against the wall that PO Liu indicated to him. § 87(2)(b) was wearing a backpack and PO Liu asked him to take it off and he complied. PO Liu asked § 87(2)(b) to produce identification and he started looking in his pockets and his bag. PO Liu asked, "Sir, do you have any ID?" § 87(2)(b) did not reply verbally but looked at PO Liu and shrugged as he continued to look in his bag. PO Liu and PO Lamour both told § 87(2)(b) to turn around so he could be handcuffed and § 87(2)(b) refused. PO Liu asked § 87(2)(b) "Sir, please turn around." § 87(2)(b) replied, "No" and turned his body away from the officers. PO Liu did not know if § 87(2)(b) was attempting to walk away. § 87(2)(b) began to scream, "I'm from Canada. I'm from Canada, you can't arrest me. I'm from Canada."

§ 87(2)(b) had his back to the wall and PO Liu and PO Lamour were arranged in the "triangle position" with one on either side of him. As § 87(2)(b) began to scream, PO Liu grabbed one of § 87(2)(b)'s arms and PO Lamour grabbed the other arm. § 87(2)(b) began to kick his legs and flail his arms to avoid being handcuffed. § 87(2)(b) did not strike or make contact with PO Liu as he resisted arrest. PO Liu stuck out one of his legs and pulled § 87(2)(b) forward causing him to trip. § 87(2)(b) was brought to the ground face down and PO Lamour and PO Liu fell with him. PO Liu does not know what part of § 87(2)(b)'s body hit the ground first. § 87(2)(b) continued to resist on the ground and put his arms underneath him. PO Liu ordered him to stop resisting and put his hands behind his back at least five times. PO Liu tried to get a hold on to § 87(2)(b)'s arms to handcuff him as well as his waist area to prevent him from fleeing. PO Liu put the handcuffs on § 87(2)(b) with assistance from PO Lamour. Besides grabbing his arms and bringing him to ground, no other force was used against § 87(2)(b). PO Liu did not punch or kick § 87(2)(b) and did not see PO Lamour do so. PO Liu and PO Lamour succeeded in handcuffing him after a brief struggle on the ground. PO Liu estimated that only five minutes elapsed between when he first approached § 87(2)(b) and when he managed to handcuff him.

Approximately half of this five minute interaction took place on the ground as PO Lamour and PO Liu attempted to handcuff him.

§ 87(2)(b) continued to resist after being handcuffed, he refused to stand up and PO Lamour and PO Liu physically lifted him to his feet. PO Liu and PO Lamour walked § 87(2)(b) to Transit District Four which is located inside the Union Square Subway station. § 87(2)(b) would not provide his name, refused to be fingerprinted, and was generally not responsive. PO Gambino, of Transit District Four, had a conversation with § 87(2)(b) and persuaded him to provide his name and cooperate during the arrest process. PO Liu was not present for this conversation and does not know what the conversation entailed. A search of § 87(2)(b)'s person revealed marijuana in the left jacket pocket. PO Liu fingerprinted and photographed § 87(2)(b) at Transit District Four. § 87(2)(b) did not have any visible injuries when PO Liu processed him. § 87(2)(b) did not complain of any injuries or request medical attention while in PO Liu's presence. PO Liu transported § 87(2)(b) to Manhattan Central Booking at 1:35AM in RMP 2127. PO Liu was present when § 87(2)(b) spoke to EMS as part of the Pre-arraignment screening form at Central Booking. § 87(2)(b) did not make any medical complaints to EMS in PO Liu's presence. PO Liu did not have any further interaction with § 87(2)(b).

Subject Officer: PO ANTHONY GAMBINO

- PO Anthony Gambino is a § 87(2)(b)-old white male who is 5'9" tall and weighs 245 pounds. PO Gambino has brown hair and hazel eyes.
- On June 1, 2013, PO Gambino worked from 9:30PM to 6:05AM. PO Gambino worked alone and was in uniform. He was assigned to Transit Patrol.

Memo Book

PO Gambino did not prepare a memo book entry in regards to his interaction with § 87(2)(b).

CCRB Statement

On July 11, 2013, PO Anthony Gambino was interviewed by the CCRB (enc. C20-C21). On April 4, 2013, at approximately 7:50PM, PO Gambino was in the Transit District 4 processing paperwork for an arrest he had just made. PO Gambino first saw § 87(2)(b) when he was brought into the station by PO Lamour and PO Liu. § 87(2)(b) was irate and screaming that he wasn't an American citizen and that he couldn't be arrested.

PO Gambino heard § 87(2)(b) loudly screaming from within the holding cell and went to speak to him in an attempt to calm him down so he could be fingerprinted and photographed. When PO Gambino saw § 87(2)(b) in the holding cell, he was not handcuffed or otherwise shackled. § 87(2)(b) was mostly not coherent but he did tell PO Gambino that he didn't like PO Lamour and PO Liu.

PO Gambino denied that he gave § 87(2)(b) jelly beans but did offer him water and food. PO Gambino explained that he had nothing to do with § 87(2)(b)'s arrest and § 87(2)(b) stopped screaming that he was a Canadian citizen and could not be arrested. § 87(2)(b) allowed PO Gambino to fingerprint and photograph him. PO Gambino did not notice if § 87(2)(b) had any visible injuries and did not hear him complain of injuries. § 87(2)(b) never requested medical treatment from PO Gambino and PO Gambino denied telling § 87(2)(b) "You don't want to see a doctor." PO Gambino did not know if § 87(2)(b) asked other officers for medical treatment. After fingerprinting and photographing § 87(2)(b) PO Gambino placed him back in the holding cell and did not have any further interactions with § 87(2)(b). PO Gambino never heard PO Lamour say that he wanted to

fight § 87(2)(b) PO Gambino interacted with § 87(2)(b) for a total of ten to fifteen minutes.

Witness Officer: PO RYAN LOGAN

- PO Ryan Logan is a § 87(2)(b)-old white male who is 5'9" tall and weighs 185 pounds. PO Logan has brown hair and black eyes.
- On April 4, 2013, PO Logan was in uniform and worked with PO Peter Wong. He was assigned to a marked RMP and was assigned to Patrol Sectors H and I of the 1st Precinct.

Memo Book

At 3:50AM, 10-54 at 100 Centre Street. At 4:02AM, picked up leg shackles from room 132. At 4:20AM, escort ambulance from Manhattan Central Booking to § 87(2)(b). At § 87(2)(b), arrived at § 87(2)(b) (enc. C22-24).

CCRB Statement

On August 8, 2013, PO Ryan Logan was interviewed by the CCRB (enc. C25-26). On April 5, 2013, at approximately 3:50AM, PO Logan and his partner PO Wong, received a radio run directing them to escort a prisoner from Manhattan Central Booking, located at 100 Centre Street, to § 87(2)(b). They had been on sector patrol when they received the radio run and PO Logan does not know who ordered him to Manhattan Central Booking. The radio run did not include any information about the prisoner or his injuries. PO Logan does not remember much of the incident beyond his memo book entries and did not recognize § 87(2)(b) when shown a photograph of him taken at the CCRB. He does not remember who directed him to § 87(2)(b) when he and PO Wong arrived at Manhattan Central Booking or if he removed § 87(2)(b) from a cell.

At 4:02AM, PO Logan retrieved leg shackles in Room 32 of Manhattan Central Booking. PO Logan did not remember if PO Wong was present when he retrieved the leg shackles. PO Logan stated that it is policy to shackle the legs of prisoners during transport from one facility to another. PO Logan does not recall if he or PO Wong shackled § 87(2)(b)'s legs. PO Logan did place § 87(2)(b) in handcuffs. PO Logan did not recall if § 87(2)(b) complained about his leg shackles or handcuffs being too tight. PO Logan did not tell § 87(2)(b) "Don't be a bitch" and did not hear any other officer do so. PO Logan did not intentionally tighten § 87(2)(b)'s handcuffs or leg shackles to cause him pain. PO Logan did not recall if § 87(2)(b) had any injuries or if he complained of any injuries. § 87(2)(b) did not ask PO Logan for medical attention. PO Logan rode in the ambulance with § 87(2)(b) and an EMT. PO Logan does not know the name of this EMT. PO Logan could not recall if § 87(2)(b) made any statements while in the ambulance and could not recall his demeanor. PO Logan did not recall who took custody of § 87(2)(b) at § 87(2)(b). PO Logan had no further interaction with § 87(2)(b) after transporting him to § 87(2)(b).

Witness Officer: PO PETER WONG

- PO Ryan Logan is a § 87(2)(b)-old white male who is 5'4" tall and weighs 215 pounds. PO Logan has black hair and brown eyes.
- On April 4, 2013, PO Wong was in uniform and worked with PO Ryan Logan. He was assigned to a marked RMP and was assigned to Patrol Sectors H and I of the 1st Precinct.

Memo Book

At 3:50AM, escort from 100 Centre Street. At § 87(2)(b), escort bus from Manhattan Central Booking to § 87(2)(b). At § 87(2)(b), arrived at § 87(2)(b). Relieved from § 87(2)(b) at 6:29AM (enc. C27-29).

CCRB Statement

On October 7, 2013, PO Peter Wong was interviewed at the CCRB (enc. C30-31). On April 5, 2013, at 3:50AM, PO Wong and PO Logan received a radio communication directing them to escort a sick prisoner from Manhattan Central Booking to § 87(2)(b). PO Wong did not remember if the radio communication contained any specific information as to § 87(2)(b)'s condition. PO Wong did not recognize § 87(2)(b) when shown a photograph of him. At § 87(2)(b) they escorted the ambulance containing § 87(2)(b) from Manhattan Central booking to § 87(2)(b). PO Wong did not remember where he and PO Logan took custody of § 87(2)(b) within Manhattan Central Booking. PO Wong did not remember if § 87(2)(b) was in a cell when he first saw him or somewhere else in Manhattan Central Booking. PO Wong did not remember if EMS was already with § 87(2)(b) by the time he and PO Logan arrived. PO Wong did not remember who handcuffed § 87(2)(b) or who placed him in leg shackles. PO Wong did not remember if § 87(2)(b) offered any resistance when he was handcuffed or when he was taken to the ambulance. PO Wong did not remember if § 87(2)(b) complained that his handcuffs or leg shackles were too tight. PO Wong did not tell § 87(2)(b) "Don't be a bitch." PO Wong did not hear PO Logan say, "Don't be a bitch." PO Wong did not use any profanity with § 87(2)(b) and did not hear any other officer do so. PO Logan rode in the ambulance with § 87(2)(b) while PO Wong followed in a marked RMP. At § 87(2)(b) they arrived at § 87(2)(b) and were relieved at 6:29AM. § 87(2)(b) was shackled to the bed in § 87(2)(b) by medical staff and was cursing at medical staff and using racial slurs. PO Wong did not remember if § 87(2)(b) complained about being shackled to his bed by medical staff in § 87(2)(b).

Medical Records

- On § 87(2)(b), § 87(2)(b)'s Nursing Triage and Initial Assessment form was prepared. It states that § 87(2)(b) had previously been diagnosed with bipolar disorder and answered, "I don't know" when asked why he was in the hospital. § 87(2)(b) was described as combative and noncompliant. § 87(2)(b)

- § 87(2)(b)

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of September 26, 2013 with regard to the incident.

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (enc. A3)

Subject Officer CCRB History

- PO Gary Lamour has been a member of the service for four years and there are no substantiated CCRB allegations against him. (enc.A1)
- PO Anthony Gambino has been a member of the service for four years and there are no substantiated CCRB allegations against him. (enc.A2)

Conclusion

Identification of Subject Officer

§ 87(2)(b) identified PO Liu and PO Lamour as his arresting officers by name. Both PO Liu and PO Lamour acknowledged interacting with § 87(2)(b) and participating in his arrest. § 87(2)(b) identified PO Gambino by name, and PO Gambino acknowledged that he helped process § 87(2)(b)'s arrest.

Investigative Findings and Recommendations

Allegation A) Force: PO Garry Lamour used physical force against § 87(2)(b)

§ 87(2)(b) was admitted to § 87(2)(b) in relation to this incident.

§ 87(2)(g)

§ 87(2)(b)'s medical records do note that § 87(2)(b) had a "small right hand abrasion." § 87(2)(g)

§ 87(2)(b) claimed that he remained completely immobile while PO Lamour and PO Liu attempted to handcuff him, but he described that the officers were forced to "fight each other" to control his hands. § 87(2)(b) alleged that PO Lamour kicked him once in the chest and once in the face as PO Liu attempted to handcuff him on the ground. § 87(2)(b) also alleged that after PO Liu handcuffed him, PO Lamour kned him twice in the face. PO Liu and PO Lamour acknowledged that it took at least two minutes to handcuff § 87(2)(b) due to his resistance, but PO Liu denied striking § 87(2)(b) during the incident. While PO Lamour denied striking § 87(2)(b) after he had been handcuffed, PO Lamour could not recall if he kicked or kned § 87(2)(b) while attempting to handcuff § 87(2)(b).

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Allegation B) Abuse of Authority: PO Anthony Gambino did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that, while in the holding cell at Union Square subway station, he noticed that he was bleeding from the mouth and had bruises on his torso. Because of these injuries, § 87(2)(b) requested medical attention from a number of officers who passed through the area in which § 87(2)(b)'s holding cell was located. § 87(2)(b) could not provide the names or physical descriptions of any of these officers except for PO Anthony Gambino. PO Gambino acknowledged that he fingerprinted and photographed § 87(2)(b) at some point while § 87(2)(b) was lodged in the holding cell at the Union Square subway station, but denied that § 87(2)(b) ever requested medical attention from him. PO Gambino did not notice any visible injuries on § 87(2)(b) and did not hear § 87(2)(b) complain of any injuries. Likewise, PO Liu did not notice any visible injuries on § 87(2)(b) and did not hear him complain of any injuries or request medical attention. § 87(2)(g)

Allegation C) Abuse of Authority: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) § 87(2)(b) alleged that while being transported from Manhattan Central Booking to § 87(2)(b), he complained that his leg shackles were too tight. An unidentified individual, of whom § 87(2)(b) could not provide any physical description whatsoever, responded to § 87(2)(b)'s complaint by saying, "Don't be a bitch." PO Wong and PO Logan, the officers assigned to transport § 87(2)(b) to the hospital, did not have a specific recollection of shackling § 87(2)(b)'s legs beyond stating that it is policy to do so when transporting prisoners. Neither PO Logan nor PO Wong told § 87(2)(b) "Don't be a bitch" and they did not recall anyone making this statement to § 87(2)(b) § 87(2)(g)

Team: 4

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date